



**City of San Buenaventura
Invitation to Bid (ITB) No. B-130000674
Thursday January 6, 2022**

Notice is hereby given that sealed bids will be received at the Purchasing and Contracts Division for providing **Ballistic Vests for Ventura Police Department**, in accordance with this Invitation to Bid.

Closing Time and Date

Bids shall be submitted in a sealed envelope clearly marked "ITB No. B-130000674 prior to:

Tuesday January 18, 2022 at 4:00 PM

Sealed bids shall be delivered by courier, express mail, or in person to:

Purchasing and Contracts Division
City of San Buenaventura
501 Poli Street, Room 102
Ventura, CA 93001

One original marked "ORIGINAL" and bearing original signatures and one identical copy must be submitted, on or before, the submittal deadline date. If discrepancies are found between the original and the copy, the original will provide the basis for resolving such discrepancies. If no document can be identified as the original, Proposer's proposal may be rejected at the discretion of the City. No oral, telegraphic, electronic, facsimile, or telephonic proposals or modifications will be considered.

Bids received after the scheduled submittal deadline will not be accepted. Bids postmarked prior to submittal deadline, but received after the deadline, will not be accepted.

Copies of the bid package and subsequent addenda may be obtained at www.cityofventura.ca.gov/bids.

INSTRUCTIONS TO BIDDERS
ITB No. B-130000674 Ballistic Vests for Ventura Police Department

- 1. Scope:**
The City of San Buenaventura, California, seeks bids for the supply of Ballistic Vests for the Ventura Police Department.
- 2. Question and Answer Period:**
All questions regarding this Invitation to Bid (ITB) shall be submitted via email to Nicole Supan, Senior Buyer in the Purchasing and Contracts Division at nsupan@cityofventura.ca.gov PRIOR to Tuesday January 11, 2022, at 2:00 PM. Any questions submitted after the deadline shall be rejected.
- 3. Award Criteria:**
 - A. Literature: Full technical information on the equipment bid shall be provided with your bid. Letters containing blanket statements or non-technical advertising brochures are not acceptable.
 - B. Proven Performance: Emphasis will be placed on the background, experience, and stability of the firm. The evaluation will focus on the firm's user references and their overall satisfaction with the item bid.
 - C. Support: The extent of operator and service training, availability of parts, warranty, and overall vendor support will be analyzed.
 - D. Timely Delivery: Vendor's ability to supply the item bid as defined herein, in a timely manner, will be an important consideration.
- 4. Items to be Returned:**
Failure to return the following items may result in the bidder's response being deemed unresponsive:
 - A. Quotation Sheet
 - B. References: Bidders shall provide, at a minimum, references and descriptions of three (3) projects that are similar in nature and have been completed within the last two (2) years. These references shall indicate the firm (and all contact information) and a thorough description of the services performed.
 - C. Bidders Statement of Past Contract Disqualifications
 - D. Bid Authorization Sheet
 - E. Signed and dated Terms and Conditions for Supplies and Non-Professional Services.
 - F. Exceptions to Invitation to Bid: any exceptions to the City's General Provisions for Standard Form Contract and Attachment "A" Terms and Conditions for Supplies and Non-Professional Services must be submitted on a separate sheet with bid submission.
 - G. Attachment "D" Small Local Business Purchasing Preference Certification (if applicable)
- 5. Items required upon successful award of contract:**
 - A. Insurance meeting requirements in Attachment "C" Insurance Requirements
 - B. A Valid City of Ventura Business License
 - C. Contractor's W-9
 - D. Attachment "D" Small Local Business Certification (if applicable)
- 6. Communication with City Staff**
Any communication with City staff, except for the Purchasing and Contracts Division, regarding this RFP is prohibited. Disregard of this provision could result in rejection of the proposal.
- 7. The City shall be the sole judge of the successful bidder hereunder. The City reserves the right to reject any or all proposals.**

CITY OF SAN BUENAVENTURA GENERAL PROVISIONS FOR STANDARD FORM CONTRACTS

Please Read Carefully

These provisions are part of your Bid/Proposal/Quotation and any resultant Contract

Definitions:

- A. "Bidder" or "Contractor" is any individual, partnership, or corporation that submits a bid, proposal, or quotation.
- B. "Bid," "Proposal," or "Quotation" shall hereafter be referred to as "Bid."
- C. "Assistant Finance Director" shall mean the Assistant Finance Director or designee.

The Bidder agrees that:

- A. Bidder has carefully examined the specifications, and all provisions relating to the item(s) to be furnished or the work to be done;
- B. Bidder understands the meaning, intent, and requirements of the items to be furnished or work to be done; and,
- C. Bidder will enter into a written contract and furnish the item(s) or complete the work required in the time specified, in strict conformity with the specifications of the City of San Buenaventura ("City") for the prices quoted.

1. Federal Funding:

☐ Check this box if the contract is funded by a federal grant or cooperative agreement program, either directly or indirectly. If checked, Attachment "C" must be included with and applies to these Provisions. (*Indirect funding is when the City of San Buenaventura receives federal funding through a source other than the federal government. E.g. the federal government provides funding to the State of California and the State then passes the funding through to a local government entity such as the City of San Buenaventura.*) In the event of any contradictions or inconsistencies between Attachment "C" and these provisions, the terms of Attachment "C" shall control.

2. Prices:

All prices and notations must be in ink or typewritten. Mistakes may be crossed out and corrections typed or written in with ink adjacent to the error. The person signing the bid must initial corrections in ink.

Bids shall indicate the unit price extended to show the total price for each item bid. Any difference between the unit price extended and the total price shown for all items bid shall be resolved in favor of the unit prices.

3. Bidder's Security:

A bid deposit in an amount equal to at least 10% of the bid may be required as a bid security by the City. The bid security may only be in cash, a cashier's check, a certified check made payable to the City, or a bid bond. If the bid security is a bond, it shall be executed by an insurer authorized to issue surety bonds in the State of California. The bid security must be executed by the Bidder and enclosed with the bid in the sealed bid envelope.

4. Faithful Performance Bond:

If required, the Bidder will furnish the City with a surety bond conditioned upon the faithful performance of the contract. This may take the form of a bond executed by a surety company authorized to do business in the State of California and approved by the City, an endorsed Certificate of Deposit, or a money order or a certified check drawn on a solvent bank. The bond shall be in a sum equal to one hundred percent (100%) of the amount of the contract price. Such bond or deposit shall be forfeited to the City in the event that bidder receiving the contract shall fail or refuse to fulfill the requirements and all terms and conditions of the contract.

5. Items Offered:

If the item offered has a trade name, brand, and/or catalog number, such shall be stated in the bid. If the Bidder proposes to furnish an item of a manufacturer or bidder other than that mentioned on the face hereof, Bidder must specify maker, brand, quality, catalog number, or other trade designation. Unless such is noted on the bid form, it will be deemed that the item offered is that designated even though the bid may state "or equal."

6. Brand Names:

Whenever reference to a specific brand name is made, it is intended to describe a component that has been determined to best meet operational, performance, or reliability standards of the City, thereby incorporating these standards by reference within the

specifications. These specifications are not meant to limit the Bidder. They are guidelines to minimum qualifications. The Bidder shall indicate their compliance or non-compliance for each line of the specification. Any deviations from the specifications, or where submitted literature does not fully support the meaning of the specifications, must be clearly cited in writing by the Bidder.

An equivalent ("or equal") may be offered by the Bidder, subject to evaluation and acceptance by the City. It is the Bidder's responsibility to provide, at Bidder's expense, samples, test data, or other documentation the City may require to fully evaluate and determine acceptability of an offered substitute. The City reserves the right to reject a substituted component that will not meet or exceed City specifications.

7. Samples:

Samples may be required for bid evaluation and testing purposes. Bidders agree to provide samples within forty-eight (48) hours upon request and at no additional cost to the City.

8. Verification of Quotations:

Prices must be verified prior to bid submittal, as withdrawal or correction may not be permitted after the bid has been opened.

9. Firm Prices:

Prices on bid shall be firm prices not subject to escalation. In the event the specifications provide for escalation, the maximum limit shall be shown, or the bid shall not be considered. In the event of a decline in market price below a price bid, the City shall receive the benefit of such decline.

10. Alternative Bids:

To be responsive, Bidder must submit a bid that meets all specific bid requirements. Once Bidder has proposed a product which is responsive to the specification, Bidder may include with the bid any additional bids or alternative products that Bidder believes can meet or exceed the City's requirements and that may offer additional advantages, benefits, or cost savings. The City reserves the right to evaluate, and accept or reject, such alternatives as though they were part of the original specifications without advertising for further bids, when in the best interests of the City. Any awards so made will be based on operational and cost analysis considerations that would result in the optimum economic advantage to the City.

11. Confidential Information:

Any information deemed confidential or proprietary should be clearly identified by the Bidder as such. It may then be protected and treated with confidentiality only to the extent permitted by law. Otherwise the information shall be considered a public record. Information or data submitted with a bid will not be returned.

12. Quality:

Unless otherwise required in the specifications, Bidder shall assume that all goods furnished shall be new and unused.

13. Tropical Hardwoods:

Bidder shall not provide any tropical hardwood items to the City.

14. Modification or Withdrawal of Bids:

Bids may be modified or withdrawn by written notice sent by regular U.S. mail or email and received by the Purchasing and Contracts Section of the City's Finance & Technology Department prior to the exact hour and date specified for receipt of bid. A bid may also be withdrawn in person by a bidder, or bidder's authorized representative, prior to the exact hour and date set for receipt of bids. Telephone withdrawals are not permitted.

15. Late Bids:

Bids received after the exact time and date specified for receipt will not be considered.

16. Mistake in Bid:

(a) If the Bidder discovers a mistake in the bid prior to the hour and date specified for receipt of bid, Bidder may correct the mistake by modifying or withdrawing the bid in accordance with Section 14 above.

(b) If prior to the issuance of a purchase order or a contract, the apparent low bidder discovers a mistake in the bid of a serious and significant nature which is unfavorable to Bidder, Bidder may request consideration be given to modify the bid if it remains the lowest, responsive, and responsible bid. The right is reserved by the City to reject any and all requests for correction of mistakes in bids received after the hour and date of the bid closing. The decision of the Assistant Finance Director is final with regard to acceptance or rejection of requests for correction of bids.

17. Signature:

All bids shall be signed and the title and firm name indicated. A bid by a corporation shall be signed by an authorized officer, employee, or agent, and indicate his or her title.

18. Litigation Warranty:

The Bidder warrants that Bidder is not currently involved in litigation or arbitration concerning the materials or performance relative to the same or similar material or service to be supplied pursuant to this bid. Bidder further warrants that no judgments or awards have been made against Bidder on this basis. Disclosure to the City in the bid or failure to disclose to the City in the bid of pending litigation, arbitration, judgment, or award involving the same or similar material or service as to be supplied herein may disqualify the Bidder. The City reserves the right to consider the facts surrounding such disclosure and, in the event the bid is awarded to Bidder, to require Bidder to furnish the City with a surety bond pursuant to Section 3, above.

19. Royalties, Licenses and Patents:

Unless otherwise specified, the Bidder shall pay all royalties, license fees, and patent fees. The Bidder warrants that the materials to be supplied do not infringe any patent, trademark, or copyright, and further agrees to defend any and all suits, actions, and claims for infringement that are brought against the City and City's officers, employees, agents, and volunteers (collectively "City Parties"), and to defend, indemnify, and hold harmless City Parties from all loss or damages, whether general, exemplary or punitive, as a result of any actual or claimed infringement asserted against City Parties, the Bidder, or those furnishing materials to Bidder to meet the bid specifications.

20. Performance Standards:

Performance of work and acceptability of equipment or materials supplied pursuant to any contract or award shall be to the satisfaction of the City.

21. Warranties:

(a) All material, labor, or equipment provided under the contract shall be warranted by Bidder and/or manufacturer for at least twelve (12) months after acceptance by City. Greater warranty protection will be accepted. Lesser warranty protection must be indicated by Bidder on the bid as an exception.

(b) Bidder shall be considered primarily responsible to the City for all warranty service, parts, and labor applicable to the goods or equipment provided by Bidder under this bid, regardless of whether Bidder is an agent, broker, fabricator, or manufacturer's dealer. Bidder shall be responsible for ensuring that warranty work is performed at a local agency or facility convenient to City and that services, parts, and labor are available and provided to meet City's schedules and deadlines.

22. Addenda:

Before submitting a bid, each bidder shall ascertain whether any addenda have been issued. Failure to cover in this bid any such addenda issued may render the bid non-responsive and result in its rejection.

23. Taxes:

The City is exempt from Federal Excise Tax. The City is liable for State, City, and County Sales Taxes.

24. Living Wage Requirements:

Bidder understands and agrees that if Living Wages are applicable subject to the provisions of Chapter 2.525 of the San Buenaventura Municipal Code (the "Code") entitled, "Living Wages and Benefits for City Services" (a copy of which is available upon request), Bidder will pay and/or provide the wages and/or benefits required therein to all of its employees engaged in whole or in part in performing the services required pursuant to the solicitation.

Moreover, Bidder will require any of its successors, assigns, and subcontractors who receive any compensation or other emoluments arising out of the performance of the services required to similarly pay and/or provide such wages and/or benefits to all of their employees engaged in whole or in part in performing such services.

25. Prevailing Wage Requirements:

Effective January 1, 2015, the payment of State prevailing rates of wages as designated for Ventura County for on-site work and delivery of materials shall apply to projects for alteration, demolition, repair, or maintenance work over \$15,000. Prevailing wages are required to be paid to all workers, including subcontracted employees.

For information, go to:

<https://www.dir.ca.gov/Public-Works/PublicWorksSB854FAQ.html>

Use of Prevailing Wages vs. Living Wages: In the event that there is a difference between the amount of wages to be paid under the City's local Living Wage requirements and the requirements of this provision, the wage rate that is the higher of the two shall be applicable to the contract. **PLEASE NOTE, with respect to Federal contracts, other requirements may apply, in which case, the highest of the federal Prevailing Wage, state Prevailing Wage and local Living Wage prevails.**

It is unlawful to split, or separate into small portions, work orders, projects, purchases, or public works projects for the purpose of evading these prevailing wage requirements.

26. Conflict of Interest:

No City employee or elected or appointed member of City government, or member of the employee or elected or member's immediate family, may participate directly or indirectly in the procurement process pertaining to this bid if they:

(a) Have a financial interest or other personal interest that is incompatible with the proper discharge of their official duties in the public interest or would tend to impair their independence, judgment, or action in the performance of their official duties.

(b) Are negotiating for or have an arrangement concerning prospective employment with Bidder. The Bidder warrants to the best of his knowledge that the submission of the bid will not create such conflict of interest. In the event such a conflict occurs, the Bidder is to report it immediately to the Assistant Finance Director. For breach or violation of this warranty, the City shall have the right to annul this contract without liability at its discretion, and Bidder may be subject to damages and/or debarment or suspension.

27. Gratuities:

The City may rescind the right of the Bidder to proceed under this Contract if it is found that gratuities in the form of entertainment, gifts, or otherwise are offered or given by the Bidder, or any agent or representative of the Bidder, to any officer or employee of the City with the intent of influencing award of this Contract or securing favorable treatment with respect to performance of this Contract.

28. Insurance:

Prior to commencement of the services required by this bid, the Bidder shall procure and maintain in full force and effect all of the insurance required by Attachment "B," attached hereto and incorporated herein by this reference.

29. Indemnification:

As a separate and independent covenant from Bidder's obligations under Section 28 hereof, Bidder shall indemnify, protect, defend with counsel acceptable to the City, and hold City and City's officers, employees, agents, and volunteers harmless and free from any and all claims, liabilities, or expenses, including attorney's fees, arising out of or relating to any negligent act, negligent omission, or wrongful conduct related in any way to Bidder's performance of its services pursuant to this Contract. In the event City and/or any of City's officers, employees, agents, or volunteers are named in any lawsuit, or should any claim be made against it or any of them by lawsuit or otherwise arising out of or relating to such negligent act, negligent omission, or wrongful conduct, Bidder shall indemnify them for any judgment rendered against them for such negligent act, negligent omission, or wrongful act, any sums paid out in settlement or otherwise, and all costs incurred by them in their defense, including but not limited to attorney's fees.

Bidder also understands and agrees that it is being employed to perform the services provided for by this Contract because of Bidder's professed expertise and experience in performing such services. In addition, Bidder understands and agrees that while City or City's officers, employees, agents, or volunteers may elect to do so, they have no duty to review, inspect, monitor, or supervise the work performed by Bidder pursuant to this Contract except as otherwise expressly provided for by this Contract. As a consequence, Bidder waives any right of contribution against City or any of City's officers, employees, agents, or volunteers arising out of such failure to inspect, review, monitor, or supervise the work performed by Bidder pursuant to this Contract.

The Bidder's obligations under this Section of the Contract shall survive the termination of the Contract.

30. Award of Contract:

(a) Bids will be analyzed and award will be made to the lowest, responsive, and responsible bidder whose bid conforms to the solicitation and whose bid is considered to be most advantageous to the City.

(b) The City reserves the right to reject any item or items.

(c) The City reserves the right to award one or more contracts on the bids submitted, either by award of all items to one bidder or by award of separate items or groups of items to various bidders as the interests of the City may require, unless the bidder clearly specifies otherwise in his/her/its bid.

Upon acceptance by the City, the solicitation, bid, price quotation, and a purchase order issued to the successful bidder shall be deemed to result in a binding contract incorporating those terms and these General Provisions.

31. Request for Proposal (RFP) Submittals:

The documents submitted by prospective bidders are competitive sealed proposals and not competitive sealed bids. When proposals are opened, prices and other information will not be made public until the proposal is awarded. There will be no disclosure of any bidder's information to competing bidders prior to the award of the proposal. At that time, the executed contract and proposals will become public information.

32. Protests:

Protests by unsuccessful bidders to the selection for award shall be submitted in writing to the Assistant Finance Director no later than ten (10) calendar days from the date of the letter of notice. Failure to submit a timely written protest to the Assistant Finance Director shall bar consideration of such protest. The Assistant Finance Director shall consider the merits of the protest and make a determination that shall be immediately communicated to the protesting bidder. Any appeal concerning the determination of the Assistant Finance Director shall be submitted in writing to the Finance & Technology Director no later than five (5) calendar days after the original determination is communicated to the Bidder. The Finance & Technology Director shall hear the documented arguments of the protest and a written determination will be made and returned to the affected bidder(s). Determinations by the Finance & Technology Director concerning protests are final.

33. Documentation:

Due to the time constraints that affect contract performance, all required documents, certificates of insurance, and bonds shall be provided to the City within ten (10) calendar days following award or date of request by City, whichever is later. Any failure to comply may result in the bid being declared non-responsive and rejected, and at City's option, if a bid bond was required, it may be attached for damages suffered.

34. Document Ownership:

(a) All technical documents and records originated or prepared pursuant to this solicitation, including papers, reports, charts, and computer programs, shall be delivered to and become the exclusive property of the City and may be copyrighted by the City. Bidder assigns all copyrights to City by undertaking this Contract.

(b) All inventions, discoveries, enhancements, changes, or improvements of computer programs developed pursuant to this solicitation shall be the property of the City, and all patents or copyrights shall be assigned to City, unless otherwise agreed. Bidder agrees that City may make modifications to computer software furnished by Bidder without infringing Bidder's copyright or any license granted to City.

35. Advertisements, Product Endorsements:

City employees and agencies or organizations funded by the City are prohibited from making endorsements, either implied or direct, of their company, commercial products, or services, without prior written approval of the City Manager.

36. Optional Cooperative Purchase Agreement

It is intended that any other public agency (i.e., city, district, public agency, municipality, or state agency) located within California shall have the option to participate in any award made as a result of this bid. The City shall incur no financial responsibility in connection with purchase orders or contracts made by the Bidder with another public agency resulting from this bid. The public agency shall accept sole responsibility for placing orders and making applicable payments to the Bidder. The option shall not be considered in the bid evaluation.

37. City Provisions to Prevail:

The City's General Provisions shall govern any contract award. Any standard terms and conditions submitted by Bidder may result in the rejection of the bid. To the extent not otherwise provided for by the contract documents, the California Commercial Code shall apply.

38. Invalid Provisions:

In the event that any one or more of the provisions of this bid shall be found to be invalid, illegal, or unenforceable, the remaining provisions shall remain in effect and be enforceable.

39. Lawful Performance:

Bidder shall abide by all Federal, State and Local Laws, Ordinances, Regulations, and Statutes as may be related to the performance of duties under this solicitation. In addition, all applicable permits and licenses required shall be obtained by the Bidder, at Bidder's sole expense.

40. Venue:

This Contract shall be governed by and interpreted according to the laws of the State of California, and venue for any proceeding shall be in the Superior Court of California, County of Ventura.

41. Small Local Business Purchasing Preference:

In determining the lowest responsible bidder for any city purchase of goods or public works construction contract that is for \$250,000 or less, and when responsibility and quality are equal, a credit of five percent (5%) of the bid submitted by the lowest responsible bidder meeting specifications shall be given to a bidder that meets the definition of a "Small Local Business," as defined in Attachment "D."

Certification: Should Bidder meet the requirements of a Small Local Business, Attachment "D" must be completed and returned with a valid and authorized quotation.

APPROVED AS TO FORM
PER SBMC, SECTION 4.600.050
Gregory G. Diaz, City Attorney

SPECIFICATIONS
ITB No. B-130000674 Ballistic Vests for Ventura Police Department

Background:

The City of Ventura is soliciting bids for ballistic vest for the City's Police department. The bids will be used to establish a valid unit price list in association with a Blanket Purchase Order (BPO). The BPO establishes an open account for the City of Ventura and the selected vendors. The BPO provides the ability for the City of Ventura to utilize the established vendor list for purchases by the City's Police department.

The City may choose to award to more than one vendor. This is not an all or none bid. Vendor only needs to fill in the items they are able to provide on the quotation sheet.

Ventura Police Department has 134 sworn officers. The replacement cycle for each officer is 3-5 years, as needed or when new officers are sworn in. Estimated annual purchase of vest is approximately 25-30/year.

Scope of Work:

- A. Vendor shall provide custom fitting within one week of vendor notification at Ventura Police Department in Ventura, CA and the Police Academy in Camarillo, CA several times annually within one (1) week of receipt of order.
- B. Six (6) week maximum turn-around time from fitting of vest to delivery of vest
- C. Free delivery.
- D. Return Policy: 30-day on vests that need to be re-cut or are ill-fitting.
- E. Contract date effective from issuance of Purchase Order to June 30, 2020
- F. Each vest will also include an additional vest carrier.

List of Vest:

- A. Second Chance Summit SM02 Level II (NIJ) Standard .06 *
- B. Second Chance Summit SM02 Level IIIA (NIJ) Standard .06 *
- C. American Body Armor (ABA) Xtreme HP02 Level II (NIJ) Standard .06 *
- D. American Body Armor (ABA) Xtreme HP02 Level IIIA (NIJ) Standard .06 *
- E. US Armor Enforcer 6000 model 6316M Level IIIA (NIJ) Standard .06 *
- F. US Armor Enforcer 6000 model 6326F Level IIIA (NIJ) Standard .06 *
- G. Point Blank Alpha Elite Level II (NIJ) Standard .06 *
- H. Point Blank Alpha Elite Level IIIA (NIJ) Standard .06 *
- I. Safariland Soft Concealed Body Armor SX02 Level II (NIJ) Standard .06 *
- J. Safariland Soft Concealed Body Armor SX02 Level IIIA (NIJ) Standard .06 *
- K. Safariland Soft Concealed Body Armor SM02 Level II (NIJ) Standard .06 *
- L. Safariland Soft Concealed Body Armor SM02 Level IIA (NIJ) Standard .06 *

**Or Approved Equivalent*

QUOTATION SHEET
ITB No. B-130000674 Ballistic Vests for Ventura Police Department

These specifications describe the minimum requirements. The items specified are to be used by the Ventura Police Department. The specifications for the items represent specifications best suited to the intended use. As part of this bid, bidder must provide an exception page for each item bid listing any exception(s) taken to the specifications. If exception(s) are not noted, the City will assume the bidder will meet all of those requirements and assume full responsibility to meet the specifications.

Company Name:	
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Item No.	Description	UoM	Qty	Unit Price
1.	Second Chance Summit SM02 Level II (NIJ) Standard .06 *	EA	1	\$
2.	Second Chance Summit SM02 Level IIIA (NIJ) Standard .06 *	EA	1	\$
3.	American Body Armor (ABA) Xtreme HP02 Level II (NIJ) Standard .06 *	EA	1	\$
4.	American Body Armor (ABA) Xtreme HP02 Level IIIA (NIJ) Standard .06 *	EA	1	\$
5.	US Armor Enforcer 6000 model 6316M Level IIIA (NIJ) Standard .06 *	EA	1	\$
6.	US Armor Enforcer 6000 model 6326F Level IIIA (NIJ) Standard .06 *	EA	1	\$
7.	Point Blank Alpha Elite Level II (NIJ) Standard .06 *	EA	1	\$
8.	Point Blank Alpha Elite Level IIIA (NIJ) Standard .06 *	EA	1	\$
9.	Safariland Soft Concealed Body Armor SX02 Level II (NIJ) Standard .06 *	EA	1	\$
10.	Safariland Soft Concealed Body Armor SX02 Level IIIA (NIJ) Standard .06 *	EA	1	\$
11.	Safariland Soft Concealed Body Armor SM02 Level II (NIJ) Standard .06 *	EA	1	\$
12.	Safariland Soft Concealed Body Armor SM02 Level IIA (NIJ) Standard .06 *	EA	1	\$

**Or Approved Equivalent*

REFERENCES
ITB No. B-130000674 Ballistic Vests for Ventura Police Department

List three (3) persons or companies with whom you have performed similar services during the past five years.

REFERENCE NO. 1

Firm: _____
Name: _____ Title: _____
Address: _____
Telephone: _____
Email: _____
Description: _____

REFERENCE NO. 2

Firm: _____
Name: _____ Title: _____
Address: _____
Telephone: _____
Email: _____
Description: _____

REFERENCE NO. 3

Firm: _____
Name: _____ Title: _____
Address: _____
Telephone: _____
Email: _____
Description: _____

**BIDDERS STATEMENT OF
PAST CONTRACT DISQUALIFICATIONS
ITB No. B-130000674 Ballistic Vests for Ventura Police Department**

The bidder is required under Section 14310.5 of the Government Code to state any and all instances of being disqualified, removed, or otherwise prevented from bidding on, or completing a federal, state, or local government project due to a violation of a law or safety regulation.

1. Have you ever been disqualified from any government contract?

Yes ____ No ____

2. If yes, explain the circumstances.

Signature of Bidder

AUTHORIZATION SHEET
ITB No. B-130000674 Ballistic Vests for Ventura Police Department

1. Discount for payment of invoice within 30 days of receipt is _____%.
2. Price, terms, and any other conditions quoted shall remain valid and in effect days from bid opening date (minimum of 60 days) _____Days.
3. This is to certify that I have carefully reviewed the City of San Buenaventura's Bid on Invitation to Bid No. B-130000674 and agree to full compliance with the terms and conditions included therein unless otherwise clearly indicated in writing on a separate sheet any exception my firm is making to these specifications. Therefore, I, the undersigned, hereby agree to perform the services in the bid as specified, if awarded this bid, within the time specified and at the price quoted therein and without any additional charges to the City of San Buenaventura.

COMPANY NAME

NUMBER

FAX NUMBER

PHONE

COMPLETE MAILING ADDRESS

EMAIL ADDRESS

NAME AND TITLE OF AUTHORIZED COMPANY OFFICIAL

SIGNATURE

DATE

Attachment "A"

Terms and Conditions (Supplies and Non-Professional Services)

All materials, supplies, or services, required for performance of this Agreement, shall be furnished subject to the following terms and conditions:

1. **DEFINITIONS:**
"Assistant Finance Director" means the City's Assistant Finance Director or designee.
"City" means "City of San Buenaventura."
"Seller," "Contractor," or "Vendor" means the party with whom City is contracting.
"Purchase Order," "Agreement," "Contract," "Service Order," or "Order" means the name or title of the instrument of contracting, including all documents, exhibits and attachments referenced therein.
2. **FEDERAL FUNDING:**
☐ Applicable. Check this box if the Order is funded by a federal grant or cooperative agreement program, either directly or indirectly. If checked, Attachment "B" must be included with and applies to this Agreement. (*Indirect funding is when the City of San Buenaventura receives federal funding through a source other than the federal government. E.g. the federal government provides funding to the State of California and the State then passes the funding through to a local government entity such as the City of San Buenaventura.*) In the event of any contradictions or inconsistencies between Attachment "B" and the provisions of the Agreement itself, the terms of Attachment "B" shall control.
☐ Not Applicable. If checked, Attachment "B" should be omitted from this Agreement.
3. **ACCEPTANCE OF ORDER:** This Order is the City's offer to Seller. Seller's acceptance shall be strictly limited to the terms of this Order and the City hereby rejects any additional or different terms in Seller's acceptance; therefore, by executing and returning to the City the Acceptance or Acknowledgment copy of this Order, or by beginning performance, Seller accepts this order as written.
4. **CONFLICT OF INTEREST:** Seller warrants to the best of its knowledge that the submission of any offer related to this order does not constitute a conflict of interest in terms of negotiating for or having an arrangement with any City employee or elected or appointed member of City government, including any member of the employee's immediate family who may have participated directly or indirectly with the Assistant Finance Director. For intentional breach or violation of this warranty, the City shall have the right, at its discretion, to annul this agreement without liability, and Seller may be subject to damages and/or debarment or suspension.
5. **PRICE WARRANTY:** Seller warrants that the price of the ordered products or services does not exceed the price charged by Seller to any other customer purchasing the same products or services in like or smaller quantities, and under similar conditions of purchase.
6. **ASSIGNMENT:** This Order is not assignable by Seller in whole or in part, without the prior written approval of the Assistant Finance Director.
7. **TROPICAL HARDWOODS:** Seller shall not provide any tropical hardwood item to the City.
8. **AMENDMENTS AND MODIFICATIONS:** The Assistant Finance Director may at any time, by written CHANGE TO THE PURCHASE order, and without notice to the sureties, make a modification to this Agreement. Any claim by the Seller for adjustment under this clause must be asserted within 30 calendar days from the notification date.
9. **DISPUTES:** Except as otherwise provided in these terms and conditions, any dispute concerning a question of fact arising under this Agreement which is not disposed of by agreement shall be decided by the Assistant Finance Director, who shall reduce this decision to writing and mail a copy to the Seller. The decision of the Assistant Finance Director shall be final and conclusive, unless Seller requests mediation within ten (10) calendar days. Pending final decision of a dispute, the Seller shall proceed diligently with the performance of the Agreement and in accordance with the decision of the Assistant Finance Director.
10. **MEDIATION:** Should a dispute arise out of this Agreement, any party may request that it be submitted to mediation within ten (10) calendar days of the Assistant Finance Director's decision on the dispute. The parties shall meet in mediation within thirty (30) days of a request. The mediator shall be agreed to by the mediating parties; in the absence of an agreement, the parties shall each submit one name from mediators listed by either the American Arbitration Association, the California State Board of Mediation and Conciliation, or other agreed-upon service. The mediator shall be selected by a "blindfold" process.

The cost of mediation shall be borne equally by both parties. Neither party shall be deemed the prevailing party. No party shall be permitted to file a legal action without first meeting in mediation and making a good faith attempt to reach a mediated settlement. The mediation process, once commenced by a meeting with the mediator, shall last until agreement is reached by the parties but not more than sixty (60) days, unless the maximum time is extended by both parties.
11. **NON-DISCRIMINATION AND WORKPLACE POLICIES:** Seller, when providing a service, program, or activity to the public on behalf of the City, shall not discriminate in the employment of any person because of race, skin color, gender, age, religion, disability, national origin, ancestry, sexual orientation, housing status, marital status, familial status, weight, or height of such person. Any seller who is found in violation of the nondiscrimination provisions of the State of California Fair Employment Practices Act or similar provision of federal law or executive order in the performance of any contract with the City thereby shall be found in material breach of such contract and, thereupon, the City shall have the power to cancel or suspend the contract, in whole or in part, or to deduct from the amount payable to such contractor the sum of \$25.00 for each person for each calendar day during which such person was discriminated against, as damages for said breach of contract, or both. Only a finding of the State of California Fair Employment Practices Commission or the equivalent federal agency or officer shall constitute evidence of a violation of contract under this section.

In addition, if Contractor will be providing a service, program, or activity to the public on behalf of the City, Contractor shall comply with the Americans with Disabilities Act and City's policies pursuant thereto, and shall be required to certify that they are in compliance with Sections 8350 – 8355 of Chapter 5.5 of the Government Code, Drug Free Workplace Act.

12. LIVING WAGE REQUIREMENTS:

Bidder understands and agrees that if Living Wages are applicable subject to the provisions of Chapter 2.525 of the San Buenaventura Municipal Code (the "Code") entitled, "Living Wages and Benefits for City Services" (a copy of which is available upon request), Bidder will pay and/or provide the wages and/or benefits required therein to all of its employees engaged in whole or in part in performing the services required pursuant to the solicitation.

Moreover, Bidder will require any of its successors, assigns, and subcontractors who receive any compensation or other emoluments arising out of the performance of the services required to similarly pay and/or provide such wages and/or benefits to all of their employees engaged in whole or in part in performing such services.

13. PREVAILING WAGE REQUIREMENTS:

Effective January 1, 2015, the payment of State prevailing rates of wages as designated for Ventura County for on-site work and delivery of materials shall apply to projects for alteration, demolition, repair, or maintenance work over \$15,000. Prevailing wages are required to be paid to all workers, including subcontracted employees.

For information, go to:

<https://www.dir.ca.gov/Public-Works/PublicWorksSB854FAQ.html>

Use of Prevailing Wages vs. Living Wages: In the event that there is a difference between the amount of wages to be paid under the City's local Living Wage requirements and the requirements of this provision, the wage rate that is the higher of the two shall be applicable to the contract. **PLEASE NOTE, with respect to Federal contracts, other requirements may apply, in which case, the highest of the federal Prevailing Wage, state Prevailing Wage and local Living Wage prevails.**

It is unlawful to split, or separate into small portions, work orders, projects, purchases, or public works projects for the purpose of evading these prevailing wage requirements.

14. LAWS AND COMPLIANCE: Vendor shall abide by all Federal, State, and Local Laws, Ordinances, Regulations, and Statutes, including Occupational Safety and Health Administration standards, as may be related to the performance of duties under this agreement. In addition, the Seller, at Seller's sole expense, shall obtain all applicable permits and licenses that are required for performance hereunder. This Order shall be interpreted according to the laws of the State of California. Should litigation occur, venue shall be in the Superior Court of California, County of Ventura.

15. INSURANCE:

Prior to commencing the services required by this Agreement, and at all other times this Agreement remains in effect, the VENDOR shall procure and maintain in full force and effect all of the insurance required by Attachment "B," attached hereto and incorporated herein by this reference.

16. INDEMNIFICATION AND HOLD HARMLESS: As a separate and independent covenant from VENDOR's obligations under Section 14 hereof, VENDOR shall indemnify, protect, defend with counsel acceptable to the CITY, and hold CITY and CITY's officers, employees, agents, and volunteers harmless and free from any and all claims, liabilities, or expenses, including attorney's fees, arising out of or relating to any negligent act, negligent omission, or wrongful conduct, or any loss, damage, or injury, including death, that is sustained from any communicable disease (including, but not limited to any form of the coronavirus, or anything emanating from or related to a coronavirus), related in any way to VENDOR's performance of its services pursuant to this Agreement. In the event CITY and/or any of CITY's officers, employees, agents, or volunteers are named in any lawsuit, or should any claim be made against it or any of them by lawsuit or otherwise arising out of or relating to such negligent act, negligent omission, or wrongful conduct, or any loss, damage, or injury, including death, that is sustained from any communicable disease (including, but not limited to any form of the coronavirus, or anything emanating from or related to a coronavirus), VENDOR shall indemnify them for any judgment rendered against them for such negligent act, negligent omission, or wrongful act, or any loss, damage, or injury, including death, that is sustained from any communicable disease (including, but not limited to any form of the coronavirus, or anything emanating from or related to a coronavirus), any sums paid out in settlement or otherwise, and all costs incurred by them in their defense, including but not limited to attorney's fees.

VENDOR also understands and agrees that it is being employed to perform the services provided for by this Agreement because of VENDOR's professed expertise and experience in performing such services. In addition, VENDOR understands and agrees that while CITY or CITY's officers, employees, agents, or volunteers may elect to do so, they have no duty to review, inspect, monitor, or supervise the work performed by VENDOR pursuant to this Agreement except as otherwise expressly provided for by this Agreement. As a consequence, VENDOR waives any right of contribution against CITY or any of CITY's officers, employees, agents, or volunteers arising out of such failure to inspect, review, monitor, or supervise the work performed by VENDOR pursuant to this Agreement.

The VENDOR's obligations under this Section of the Agreement shall survive the termination of the Agreement.

17. DELIVERY: Time is of the essence in the performance of this Agreement. Deliveries (as specified on the Order) shall be strictly in accordance with the quantities and schedule specified on the Order. If at any time it appears Seller may not meet such schedule, Seller shall immediately by verbal means (to be confirmed in writing) notify City of the reasons for, and estimated duration of, the delay, and if requested by City, make every effort to avoid or minimize the delay to the maximum extent possible, including the expenditure of premium time and shipping via air or other means of fast transportation. Any additional costs caused by these requirements shall be borne by the Seller, unless delay in delivery arises out of causes beyond the control and without the fault or negligence of Seller or its subcontractors. The foregoing requirements are in addition to all of the City's other rights and remedies, as may be provided by law.

18. INSPECTION: The materials, supplies, or services furnished shall be exactly as specified in this order, free from all defects in Seller's design, workmanship, and materials, and except as otherwise provided in this Agreement, shall be subject to inspection and test by the City

at all times and places. If any materials, supplies, or services are found to be defective or not as specified, the City may reject them, require Seller to correct them without charge, or require delivery of such materials, supplies, or services at a reduced price, which is equitable under the circumstances. Seller shall bear all risks as to rejected materials, supplies, and services and, in addition to any costs for which Seller may become liable to the City under other provisions of this Order, shall reimburse the City for all transportation costs, other related costs incurred, or payments to Seller in accordance with the terms of this agreement for unaccepted materials, supplies, and services. Neither final acceptance nor payment shall relieve Seller of responsibility for faulty materials, supplies, or services.

19. TITLE: Except as otherwise expressly provided herein, title to and risk of loss on all items shipped by Seller to the City shall pass to the City upon the City's inspection and acceptance of such items at City's buildings.
20. PRODUCT LIABILITY: Seller warrants that it now has, or shall continue to maintain during the term of this order, insurance covering product liability should malfunction occur causing injury. Seller also warrants the reliability, suitability and completeness of the product, and guarantees that product shall be free from any destructive or malicious content, which would have an adverse effect on the City.
21. WARRANTIES: The City rejects any disclaimer by Seller of any warranty, standard, implied or express, unless specifically agreed to on the face of this Agreement.
22. GRATUITIES: The City may rescind the right of the Seller to proceed under this agreement if it is found that gratuities in the form of entertainment, gifts, or otherwise are offered or given by the Seller, or any agent or representative of the Seller, to any officer or employee of the City, with the intent of influencing the award of this agreement or securing favorable treatment with respect to performance of this agreement.
23. CONFIDENTIALITY: Any reports, information, data, statistics, forms, procedures, systems, studies, and any other communication or form of knowledge given to or prepared or assembled by Seller under this Agreement, which City requests be kept confidential, will not be made available to any individual or organization by Seller without the prior written approval of the City.
24. NON-APPROPRIATION OF FUNDS: Payments due and payable to CONTRACTOR for current services are within the current budget and within an available, unexhausted, and unencumbered appropriation of the CITY. In the event the CITY has not appropriated sufficient funds for payment of CONTRACTOR's services beyond the current fiscal year, and if no funds are legally available from other sources to lawfully make the payments, this Agreement may be terminated at the end of the original term or renewal term and the CITY shall not be obligated to make further payments beyond the current original or renewal term. The CITY will provide notice of its inability to continue the Agreement at such time as the CITY's Designated Representative is aware of the non-appropriation of funds. However, failure to notify does not renew the term of the contract.
25. DEFAULT BY SELLER: The City reserves the right to cancel this order if goods or services are not delivered as directed within the time specified. In case of default by Seller, the City may procure the articles or services from other sources and may deduct from any monies due, or that may thereafter become due to the Seller. The difference between the price named in the Order and actual cost thereof to the City shall be considered the prevailing market price at the time such purchase is made. The exercise by the City of this remedy does not preclude the exercise of any other rights or remedies that may now or subsequently be available at law, in equity, by statute, in any other agreement between the parties or otherwise. Periods of performance may be extended if the facts as to the cause of delay justify such extension in the opinion of the Assistant Finance Director.
26. TERMINATION: At any time, with or without cause, the City shall have the right, in its sole discretion, to terminate this Order by giving written notice to Seller. There shall be no period of grace after giving the notice of termination. Termination shall become effective immediately upon the giving of notice by personal delivery or mail. The City shall pay Seller as full compensation for performance up to the date of such termination: (1) the unit or pro rata order price for the delivered and accepted portion; and (2) a reasonable amount, not otherwise recoverable from other sources by Seller as approved by the City, with respect to the undelivered or unaccepted portion of this Order; provided compensation hereunder shall in no event exceed the total order price.
27. INVOICE AND PAYMENT: Unless otherwise specified, a separate invoice shall be issued in duplicate for each shipment of product or service provided. Invoices shall contain the following information:
 - **Purchase Order or Contract/Agreement number**
 - **Description of items or services**
 - **Quantity or level of effort performed by unit of measure, unit price, and extended totals.**

No invoice shall be issued prior to shipment of products or delivery of services. No payments shall be made until receipt of a correct invoice, and the City reserves the right to delay payment until the products or services have been accepted. Payment due dates, including discount periods, will be computed for the date of receipt of products and correct invoice (whichever is later). Payment shall not constitute acceptance of any product(s) or service(s). For the purpose of earning the discount, payment is to be made on the date of mailing of the City warrant or check.

28. TAXES: The City is subject to California State sales and use tax. If Seller is licensed to collect this tax, it should be included on Seller's invoice. The City is exempt from Federal Excise Tax (exemption certificates will be furnished by the Purchasing and Contracts Division upon request).
29. ENTIRE AGREEMENT: This Order constitutes the entire agreement and understanding between the parties, and supersedes all prior agreements and understandings related thereto. To the extent this Agreement or subsequently issued purchase orders rely on any cooperative purchase agreements, no terms or provisions included in the cooperative purchase agreement, except for any pricing terms, shall apply unless agreed upon in writing by City and Vendor.
30. ACKNOWLEDGEMENT: Seller acknowledges that it has reviewed the City's terms and conditions and insurance requirements and that Seller hereby agrees to full compliance. The below signature will acknowledge receipt and acceptance of this agreement as written. NOTE

that in accordance with Article 2, if Seller begins performance without written acknowledgement of this order, Seller accepts this order as written.

Please sign and return this acknowledgement by fax, e-mail, or return mail.

OFFICIAL SIGNATURE

DATE

PRINT NAME

TITLE

COMPANY NAME

APPROVED AS TO FORM
PER SBMC, SECTION 4.600.050
Gregory G. Diaz, City Attorney

ATTACHMENT B

City of Ventura
Supplemental Terms and Conditions
Blanket Purchase Order – Annual Authorization
Revised May 2017

I. SUPPLEMENTAL CONDITIONS GOVERNING THIS PURCHASE ORDER:

- A. This Blanket Purchase Order is assigned to your firm for the contract period as stipulated. It is issued to allow authorized personnel of the City of San Buenaventura ("City") to purchase repeated supplies and/or services required by the City in accordance with the terms and conditions and price agreements, included herein. This authority is subject to review by the City's Assistant Finance Director or delegated authority, who retains the right to cancel this order at any time and for any reason upon written notification to Seller.
- B. The dollar amount authorized on this Blanket Purchase Order is an estimate only of the City's anticipated annual purchases for this order. This amount shall not be considered to be the City's total annual legal obligation to pay for purchases unless they are otherwise requested on behalf of the City.
- C. All City personnel carry either an official City photo-identification or a business card and California driver's license and need to provide this information at the time of purchase. ***Seller will be required to confirm that Buyer is a current employee of the City*** and will be responsible for providing identification of Buyer on invoice submitted (in accordance with paragraph F below).
- D. Purchases of capital equipment are not authorized on this Blanket Purchase Order. Capital equipment includes all items which have a per unit cost of \$10,000.00 or more, a projected useful life of two (2) or more years, and operates independently as opposed to operating as a component part of an existing piece of equipment, furniture, or building.
- E. Effective January 1, 2015, prevailing wage rates for the County of Ventura shall be paid for any Public Works construction contract over \$25,000 and any project for demolition, alteration, repair or maintenance over \$15,000. Contractors and subcontractors need to be registered with the Department of Industrial Relations. ***Authorized City staff who issue work orders under a Blanket Purchase Order shall be responsible for notifying the DIR upon award of work order that meets the thresholds noted above. It is unlawful to split or separate into small portions, work orders, projects, purchases, or public works projects for the purpose of evading these prevailing wage requirements.***
- F. If the FOB point is other than destination for any one purchase, both the City and Seller must agree, prior to commitment of the order, who is responsible to pay freight charges and/or file claims. Freight charges are to be itemized separately on invoices.
- G. Seller is required to provide a priced invoice to City personnel at time of purchase. Pricing shall be in accordance with the terms of the Blanket Purchase Order. The City shall not be responsible for any charges not previously agreed to, in writing. This invoice must include the following printed information:
 - 1. Buyer's Name
 - 2. Buyer's Department
 - 3. Blanket Purchase Order Number.

Invoices submitted without this information that cannot be identified, will be returned without payment.

APPROVED AS TO FORM
Gregory G. Diaz, City Attorney
Per SBMC, Section 4.600.050

Attachment "C"
INSURANCE REQUIREMENTS

Prior to contract approval, CONSULTANT/CONTRACTOR/SELLER/BIDDER (hereafter referred to as "Contractor") must procure, agree to maintain and supply evidence of insurance at the levels listed and in accordance with the other provisions listed in this document.

1. Coverage Types and Limits

a) Commercial General Liability (ISO CGL CG 00 01) - including coverage for bodily injury, property damage, products & completed operations, and personal injury arising from the contractor's activities. Commercial General Liability (CGL) per Occurrence Commercial General Liability Aggregate or Combined Single Limit (CSL)	\$1 million \$2 million
b) Auto Liability for owned, hired, and non-owned vehicles per Occurrence (or non-owned & hired if contractor has no autos). Auto Liability Aggregate or Combined Single Limit	\$1 million \$2 million
c) Worker's Compensation <i>with a Waiver of Subrogation in favor of the City</i> Employer's Liability	Statutory Limits \$500,000
d) Crime/Employee Dishonesty Policy <i>The Crime policy shall name The City of San Buenaventura as Loss Payee. Pertains to IT and Financial contracts. Contact Risk Manager for specific requirements.</i>	N/A
e) Professional Liability Policy <i>See item (v) below for examples of Contractors that may need to supply evidence of this coverage.</i>	N/A
f) Cyber Liability Policy with Network Security/Data Privacy Coverage <i>Pertains to contracts with IT component. Contact Risk Manager for specific requirements.</i>	N/A
g) Technology E&O/Technology Professional Liability <i>Contact Risk Manager for specific requirements.</i>	N/A

2. Insurance Policy Provisions, Endorsements, and other Requirements

Contractor agrees to comply with the following additional requirements with respect to the insurance:

- a) Liability Coverage shall apply on a primary non-contributing basis in relation to any other insurance or self-insurance, primary or excess, available to City or any officer, employee, agent, or volunteer of City. As such, a Primary and Non-Contributory Endorsement (with coverage at least as broad as ISO CG 2001 04 13) is required on all liability policies.
- b) Contractor waives its right of subrogation against the City. As such, a Waiver of Subrogation Endorsement is required on the Contractor's Worker's Compensation policy.

- c) A "Blanket" Additional Insured Endorsement (a/k/a "automatic additional insured endorsement"), attached to the Commercial General Liability policy covering premises liability, ongoing operations, product liability, and completed operations is required. If a "Blanket" endorsement is not available, Contractor may submit a combination of the following endorsements:
An Additional Insured Endorsement covering Premises and Ongoing Operations CG 20 10 04 13 or its equivalent (CG 20 26, CG 20 33, or CG 20 38) AND an Additional Insured Endorsement covering Completed Operations CG 20 37 04 13.
- d) Insurance Policies must be issued by an insurance company licensed to do business in the State of California with an *AM Best* rating of not less than A:VII.
- e) Each insurance policy required above shall provide that coverage shall not be canceled except with 30 days' notice to the City.
- f) The Description section of the Certificate must include the following language:
The City of San Buenaventura, its officers, officials, agents, employees and volunteers shall be named as an additional insured under the General Liability and Auto Liability policies. All Liability policies are primary and Non-Contributory. Waiver of Subrogation applies to the Worker's Compensation policy. 30 day notice of cancellation will be provided to the Certificate Holder.
- g) A Certificate of Insurance must include the following language in the Certificate Holder section:
*City of San Buenaventura, its officers, officials, agents, employees and volunteers
501 Poli Street
Ventura, CA 93002*
- h) Contractor will provide proof that policies of insurance required herein expiring during the term of this Agreement have been renewed or replaced with other policies providing at least the same coverage. Such proof will be submitted to the City within 10 days of renewal.
- i) Contractor shall provide evidence of the insurance required herein, satisfactory to City, consisting of certificate(s) of insurance and any required endorsements evidencing all of the coverages required. Any failure on the part of City or any other additional insured under these requirements to obtain proof of insurance required under this Agreement in no way waives any right or remedy of City or any other additional insured in this or any other regard.
- j) Contractor shall ensure that coverage provided to meet these requirements is applicable separately to each insured, and that there will be no cross liability exclusions that preclude coverage for any legal action between Contractor and City, between Contractor and any other named insureds or additional insureds under the insurance policy, or between City and any party associated with City or City's officers, officials, employees, agents, or volunteers.
- k) Coverage shall not be limited to the vicarious liability or supervisory role of any additional insured. There shall be no cross liability exclusion and no Contractor limitation endorsement. In addition, there shall be no endorsement or modification limiting the scope of coverage for liability arising from pollution, explosion, collapse, underground property damage, or employment-related practices, except for a provision or endorsement limiting liability arising from pollution to liability caused by sudden or accidental pollution.
- l) Any umbrella liability insurance over primary insurance provided to meet primary limits shall apply to bodily injury, personal injury, and property damage, at a minimum. Coverage shall be as broad as any required underlying primary coverage, and shall include a "drop down" provision providing primary coverage for liability not covered by primary policies but covered by the umbrella policy. Coverage shall be provided with defense costs payable in addition to policy limits. Coverage shall have starting and ending dates concurrent with the underlying coverage.
- m) Coverage shall be written on an "occurrence basis" if such coverage is available, or on a "claims made" basis if not available. When coverage is provided on a "claims made" basis, Contractor shall continue to maintain the insurance in effect for a period of three (3) years after this Agreement expires or is

terminated. Such insurance shall have the same coverage and limits as the policy that was in effect during the term of this Agreement, and shall cover Contractor for all claims made by City arising out of any errors or omissions of Contractor, or the officers, employees or agents of Contractor during the time this Agreement was in effect.

- n) Contractor shall require all sub-contractors or other parties hired by Contractor to perform any part of the services required by this Agreement to purchase and maintain all of the insurance specified above and submit evidence of all such insurance. Contractor shall obtain certificates evidencing such coverage and make reasonable efforts to ensure that such coverage is provided as required herein.
- o) No contract used by any Contractor, or contracts Contractor enters into on behalf of City, will reserve the right to charge back to City the cost of insurance required by this Agreement. When requested, Contractor shall provide City with all agreements with sub-Contractors or others with whom Contractor contracts on behalf of City, and with all certificates of insurance obtained in compliance with this paragraph. Failure of City to request copies of such documents will not impose any liability on City, or its employees.
- p) In the event any policy of insurance required under this Agreement does not comply with these requirements or is canceled and not replaced, City has the right, but not the duty, to obtain the insurance it deems necessary to meet the requirements of this Agreement, and any premium paid by City for such insurance will be promptly reimbursed by Contractor, or, if not promptly reimbursed, deducted from any compensation to be paid by City to Contractor pursuant to this Agreement.
- q) Requirements of specific coverage features or limits contained in this Section are not intended as a limitation on coverage, limits or other requirements, or a waiver of any coverage normally provided by any insurance. Specific reference to a given coverage feature is for purposes of clarification only and is not intended by any party to be all inclusive, or to the exclusion of other coverage, or a waiver of any type. Coverage shall not be limited to the specific location, individual, or entity designated as the address of the project or services provided for by this Agreement. Insurance coverage limits are subject to change based on the unique liability associated with each project over and above standard coverage limits at the discretion of the City's Risk Manager or their designee.
- r) Contractor shall provide immediate notice to City of any claim against Contractor or any loss involving Contractor that could result in City or any of City's officers, employees, agents, or volunteers being named as a defendant in any litigation arising out of such claim or loss. City shall not incur any obligation or liability by reason of the receipt of such notice. However, City shall have the right, but not the duty, to monitor the handling of any such claim or loss that is likely to involve City.
- s) In the event of any loss that is not insured due to the failure of Contractor to comply with these requirements, Contractor will be personally responsible for any and all losses, claims, suits, damages, defense obligations, and liability of any kind attributed to City, or City's officers, employees, agents, or volunteers as a result of such failure.

Please note:

- t) Automobile Liability insurance is not required if the Vendor and its employees does NO traveling in providing services for completion of the Agreement (e.g. telecommuting). If the Vendor has employees but no vehicles registered to the business (personal vehicles only), the non-owned and hired automobile liability coverage should be included in the Vendor's Commercial Auto Liability policy.
- u) Workers Compensation insurance is not required if the Contractor is a sole proprietor/partner/corporate officer with no employees. Otherwise, Worker's Compensation is required under CA Labor Code Section 3700. A Workers Compensation Insurance Waiver is required stating Contractor is a sole proprietor/partner/corporate officer with no employees. This waiver is to be included with the other submitted documents.

v) Professional Liability may be required for the following types of contractors. These are only examples and not an all-inclusive list. Contact Risk Manager for clarification and requirements.

Examples:

Appraisers, notaries, imaging of records, EOC plan, Fair Housing assessments, trainers

Chemists, auditors, insurance agents and brokers, lawyers, laboratories, surveyors, building inspectors, traffic engineering services.

Ambulance services, actuaries, counselors, medical providers. Also includes engineers, architects, construction managers, hazardous materials evaluators, environmental impact evaluators. All IT related projects, contractors and consultants.

w) Cyber Liability and Network Security/Data Privacy Coverage and Technology E&O/Technology Professional Liability coverage may be required in agreements that have an IT or data component. Contact Risk Manager for clarification and requirements.

Attachment “D”

SMALL LOCAL BUSINESS PURCHASING PREFERENCE CERTIFICATION

The City of San Buenaventura’s (“City”) Small Local Business Purchasing Preference policy is applicable to this Request for Proposal/Bid (ITB/RFP).

Qualified bidders that desire consideration as a small local business for purposes of this ITB/RFP must complete this Certification and submit it as a part of their bid. Late submittals of the “Statement of Small Local Business Certification” will not be considered.

**STATEMENT OF SMALL LOCAL BUSINESS CERTIFICATION CITY OF
SAN BUENAVENTURA**

I _____, _____ (Individual
submitting bid) (Title)

Of/for _____, Certify under penalty of perjury that _____ (Company
Name) (Company Name)

Is a City of Ventura small local business as defined under Article 41 of these General Provisions and therefore qualifies for the Small Local Business purchasing preference.

_____, _____ (Signature)
(Date)